



HRC

STUDY GUIDE

**Topic: Ensuring the
Protection of Human Rights
in the Development and
Use of Digital Surveillance
Technologies**



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1. MESSAGE FROM THE CHAIRS

Dear Delegates,

It is our great pleasure to welcome you to the United Nations Human Rights Council. We are very excited to have you join us for a discussion on **“Ensuring the Protection of Human Rights in the Development and Use of Digital Surveillance Technologies.”**

Since technology is still advancing at a pace that is unimaginable, digital surveillance has now become an increasingly important element of modern society. Techniques such as facial recognition and biometric systems, along with spyware, data gathering, and the use of artificial intelligence, enable governments and organisations to obtain strong tools for securing national security and public safety. Yet the development and application of these technologies can also pose serious threats to basic human rights, such as the right to privacy, the freedom of expression, and the freedom of peaceful assembly.

The United Nations has on numerous occasions stated that technological developments have to be taken into account within the present international human rights framework. We would like you to consider this subject with an open mind, since there is no simple way of dividing surveillance into either beneficial or harmful categories.

The main issue lies in achieving a suitable balance between legitimate security concerns and the need to protect individual rights. The methods that different countries have adopted in reaching this balance are very varied, which in turn makes international cooperation both difficult and essential.

We ask that, within the committee, you accurately reflect your country's policies and interests while at the same time being willing to reach compromises. We hope that this issue will enable you to examine not only the challenges presented by new technologies but also the opportunities for establishing stronger safeguards, greater accountability, and more effective international cooperation.

What is most important is that you should come ready to question, negotiate, and think critically; don't hesitate to challenge the current methods or to consider points of view which are different from your own.

We look forward to meeting you and to seeing the discussions, the ideas, and the solutions that you present to the committee. Good luck with your preparations, and we look forward to meeting you in committee!

Your Chairs

2. INTRODUCTION TO THE COMMITTEE

The United Nations Human Rights Council is an intergovernmental body of the United Nations responsible for promoting and protecting human rights worldwide. It was established in 2006, replacing the former Commission on Human Rights, and is composed of 47 Member States elected by the UN General Assembly.

The Council provides a forum for Member States to discuss human rights issues, adopt resolutions, investigate violations, and develop recommendations for improving human rights protections. Its work covers issues ranging from discrimination and freedom of expression to the rights of women, children, and human rights defenders.

For this topic, the Council will consider how the development and use of digital surveillance technologies can affect fundamental rights, particularly the right to privacy, freedom of expression, and freedom of peaceful assembly. Delegates should balance these concerns with states' legitimate interests in areas such as national security and public safety.

As delegates, you are expected to represent your country's policies and interests while working towards solutions that can receive international support.

3. INTRODUCTION TO THE TOPIC

Digital surveillance refers to the use of digital technologies to monitor, collect, analyze, or track information about individuals or groups. As technology has developed, surveillance has become increasingly sophisticated, with tools such as facial recognition, biometric databases, spyware, location tracking, artificial intelligence, and online monitoring becoming more widely used.

Digital surveillance refers to the use of digital technologies to monitor, collect, analyze, or track information about individuals or groups. As technology has developed, surveillance has become increasingly sophisticated, with tools such as facial recognition, biometric databases, spyware, location tracking, artificial intelligence, and online monitoring becoming more widely used.

These technologies can provide important benefits. We need to also see the good that those technologies bring to the table. Governments may use surveillance to combat terrorism, prevent crime, protect national security, and respond to public emergencies. However, increasing their use also is raising significant human rights concerns.

The most affected right is the right to privacy, as governments and private companies can collect large amounts of personal information. Surveillance can also affect freedom of expression and peaceful assembly, particularly when individuals fear that their communications or activities are being monitored by someone. Certain technologies may also create risks of discrimination, particularly when automated systems are inaccurate or disproportionately target particular groups.

Another important aspect of the issue is the role of **private technology companies**. Governments may rely on companies to develop or provide surveillance tools, while companies themselves collect and process vast amounts of personal data. This raises questions about who should be responsible when surveillance technologies are misused.

The central challenge for the international community is therefore to determine **how digital surveillance can be used for legitimate purposes while ensuring that fundamental human rights are protected**. The UNHRC must consider what safeguards, regulations, oversight mechanisms, and international standards can help achieve this balance.

Different countries have various strategies and solutions for the issues and need to be taken into account. Also, note that different countries are affected differently, depending on their technological development, forms of government and political systems. The discussions need to be considerate of those factors and we need to provide suitable solutions that will actually have an impact.

4. KEY CONCEPTS

Digital Surveillance

The use of digital technologies to monitor, collect, track, store, or analyze information about individuals or groups. It can be carried out by governments, law-enforcement agencies, intelligence services, or private companies.

Targeted Surveillance

Surveillance directed at a specific individual or group, usually based on a particular investigation or security concern. Examples can include targeted interception of communications or the deployment of spyware against a particular device.

Mass Surveillance

The collection or monitoring of information concerning large numbers of people, including individuals who are not suspected of committing an offence. It may involve the large-scale collection of communications, location data, or information from cameras and other sensors.

Facial Recognition

Technology that analyzes an individual's facial features to identify or verify them. It can be used for purposes such as law enforcement, border control, identity verification, and public security. Concerns include privacy, accuracy, bias, and the possibility of monitoring people without their knowledge.

Biometric Data

Personal information based on physical or behavioral characteristics, such as facial features, fingerprints, iris patterns, or voice characteristics. Because biometric information can be difficult or impossible to change, its collection and misuse can create significant privacy and security risks.

Spyware

Software designed to secretly monitor or obtain information from a device. Depending on its capabilities, spyware may provide access to messages, photographs, location data, microphones, cameras, or other information stored on a device.

Artificial Intelligence (AI) Surveillance

The use of AI or automated systems to analyze large amounts of information or identify patterns, objects, behaviors, or individuals. AI can be used in areas such as facial recognition, predictive policing, and automated analysis of video footage. Concerns include inaccurate identification, discrimination, lack of transparency, and difficulties in determining responsibility for automated decisions.

Metadata

Information about a communication or digital activity rather than necessarily its content. Examples include the time a message was sent, the location of a device, or the identity of the accounts involved. Although metadata may not reveal the actual content of a communication, it can still provide detailed information about an individual's activities and relationships.

Encryption

A method of protecting information by converting it into a form that cannot easily be understood without the appropriate key. Encryption can protect privacy and communications from unauthorized access, but governments may argue that strong encryption can make criminal investigations and national-security operations more difficult.

Data Retention

The practice of requiring companies or organizations to store information about users or communications for a specified period. Governments may require retention for law-enforcement or national-security purposes, while critics may raise concerns about unnecessary collection and access to personal information.

Internet Shutdown

A deliberate disruption or restriction of internet access in a particular area or among a particular population. Shutdowns are sometimes justified by governments on grounds such as national security or public order, but they can restrict access to information and affect freedom of expression, assembly, journalism, and humanitarian activities.

Digital Sovereignty/Cyber Sovereignty

The principle that states should have significant authority over their own digital infrastructure, information environment, and cyberspace. States differ significantly in how they interpret this concept, particularly regarding the extent to which international human-rights standards should limit domestic control of digital technologies.

Necessity

The principle that a restriction on a human right should only be used when it is genuinely needed to achieve a legitimate objective and when less intrusive alternatives would not be sufficient.

Proportionality

The principle that the interference with a human right should not be excessive in relation to the legitimate objective being pursued. A surveillance measure may therefore be considered problematic if its impact on individuals' rights is significantly greater than necessary to achieve its purpose.

Judicial Oversight

The involvement of courts or judges in reviewing surveillance measures. Depending on national law, this may include requiring judicial authorization before surveillance begins or reviewing whether surveillance powers have been used lawfully.

Independent Oversight

Supervision of surveillance activities by institutions that are sufficiently independent from the authorities carrying out the surveillance. These may include courts, parliamentary committees, privacy authorities, inspectors, or specialized oversight bodies.

Transparency

The extent to which governments and companies provide information about how surveillance technologies are developed, authorized, deployed, and monitored. Complete transparency may not always be possible where sensitive intelligence is involved, creating an important balance between accountability and confidentiality.

Accountability

The requirement that governments, officials, and companies can be held responsible for unlawful or abusive use of surveillance technologies. Accountability can include investigations, judicial review, parliamentary oversight, sanctions, and access to remedies for affected individuals.

Human Rights Safeguards

Legal, institutional, and technical measures designed to prevent surveillance from unnecessarily or disproportionately interfering with human rights. Examples include warrants, judicial authorization, data minimization, time limits, independent oversight, transparency requirements, and mechanisms for individuals to seek remedies.

Data Minimization

The principle that only the personal information necessary for a specific legitimate purpose should be collected and retained. Information should not be collected simply because it might be useful in the future.

Private Surveillance Companies

Private companies that develop, sell, or operate technologies that can be used for surveillance. Their involvement raises questions concerning government procurement, corporate responsibility, export controls, transparency, and remedies when surveillance technologies are misused.

5. KEY HUMAN RIGHTS TO CONSIDER

Right to Privacy

Protection against arbitrary or unlawful interference with an individual's private life, family, home, or correspondence. It is one of the central human rights issues raised by digital surveillance.

Freedom of Expression

The right to seek, receive, and communicate information and ideas. Surveillance may affect this right if people avoid expressing opinions because they fear being monitored.

Freedom of Peaceful Assembly and Association

The right to participate in peaceful gatherings and organizations. Surveillance of protesters, activists, journalists, or civil-society organizations may discourage people from exercising these rights.

Non-Discrimination and Equality

The principle that individuals should not be subjected to unjustified discrimination. This is particularly relevant when automated surveillance systems produce inaccurate results or disproportionately affect particular groups.

Due Process and Effective Remedy

Individuals affected by unlawful surveillance should have access to fair procedures and meaningful ways to challenge abuses and obtain remedies. This can include access to courts, independent investigations, or other oversight mechanisms.

Key principle for delegates: Digital surveillance is not automatically incompatible with human rights. The central questions are why surveillance is being used, who is being monitored, what information is collected, how long it is retained, who can access it, what safeguards exist, and whether the measure is necessary and proportionate to a legitimate objective.

6. CASE STUDIES

Australia

1. Political & Technological Context

Australia is a federal parliamentary democracy with a highly developed digital economy and extensive telecommunications infrastructure. It also has significant national-security and intelligence capabilities and works closely with the United States, United Kingdom and other Five Eyes partners.

2. History & Current Use of Surveillance

Australia has extensive telecommunications-interception and data-retention legislation. Under the Telecommunications (Interception and Access) Act 1979, telecommunications providers can be subject to obligations concerning interception, communications data and the preservation of stored communications. The legislation also establishes requirements concerning the retention and handling of telecommunications data.

More recently, Australia has begun confronting newer forms of surveillance. In 2026, the Western Australia Police Force introduced a trial of overt live facial-recognition technology using cameras mounted on marked police vehicles. The system detects faces in real time and compares them with a controlled list of persons of interest. Police state that the technology is intended to prevent and detect crime, locate missing persons and protect vulnerable people.

3. Human Rights Perspective

Australia generally recognizes the importance of privacy while maintaining that surveillance can be legitimate for national security and law enforcement. The central human-rights questions concern whether surveillance powers are necessary, proportionate, transparent and subject to effective oversight.

The introduction of live facial recognition also raises questions concerning biometric data, accuracy, potential bias and the treatment of individuals who are not suspected of wrongdoing.

4. International Position & Actions

Australia participates in international discussions concerning privacy, cybersecurity and digital human rights. Its domestic framework demonstrates that Australia does not reject government surveillance itself, but instead regulates surveillance through legal powers, authorisation requirements and oversight mechanisms.

Australia provides an example of the debate between maintaining extensive national-security capabilities and ensuring that emerging surveillance technologies remain subject to adequate safeguards.

Brazil

1. Political & Technological Context

Brazil is a federal presidential republic and one of Latin America's largest digital markets. It has developed a relatively strong data-protection framework through the Lei Geral de Proteção de Dados (LGPD).

2. History & Current Use of Surveillance

Brazil has significant intelligence and law-enforcement surveillance capabilities. A major controversy involved the Brazilian Intelligence Agency (ABIN) and the use of a geolocation system acquired in 2018. ABIN stated that the tool had been used until May 2021 and subsequently opened an internal investigation while cooperating with the Federal Police and Supreme Federal Court. Brazilian telecommunications authorities also investigated allegations concerning possible access to mobile networks through spyware.

These events have raised broader questions concerning the oversight of intelligence agencies, government access to personal data and the safeguards surrounding surveillance technologies

3. Human Rights Perspective

Brazil's situation demonstrates that formal data-protection legislation does not automatically eliminate the possibility of surveillance abuse.

Important concerns include:

- privacy;
- surveillance of journalists and political figures;
- misuse of intelligence capabilities;
- spyware and geolocation tools;
- government access to personal data;
- effective oversight of intelligence agencies.

4. International Position & Actions

Brazil has played an important role in placing digital privacy on the international human-rights agenda. In 2013, Brazil and Germany introduced the draft resolution “The Right to Privacy in the Digital Age” in the UN General Assembly. The initiative led to General Assembly Resolution 68/167, which affirmed that human rights, including the right to privacy, apply in the digital environment.

Brazil therefore provides an important case study of a state that has promoted international recognition of digital privacy while also confronting questions about the domestic use and oversight of surveillance technologies.

Chile

1. Political & Technological Context

Chile is a democratic presidential republic with comparatively strong democratic institutions and a developed digital economy.

2. History & Current Use of Surveillance

Chile has increasingly incorporated digital technologies into public security and identification systems while simultaneously strengthening its data-protection framework.

In 2024, Chile adopted Law 21.719, which establishes a new framework for the protection and processing of personal data and creates a Personal Data Protection Agency. The law is scheduled to enter fully into force on 1 December 2026. It specifically establishes protections for biometric personal data, including facial features, fingerprints, iris information and voice data.

This is particularly relevant to surveillance because biometric technologies can identify individuals through characteristics that are closely connected to their identity.

3. Human Rights Perspective

Chile therefore represents an important balance between security and technological modernization on one hand, and privacy and individual rights on the other.

The treatment of biometric information is particularly relevant. Questions arise concerning:

- when biometric data may be collected;
- what purposes it may be used for;
- how long it may be retained;
- who may access it;
- what remedies are available to individuals.

4. International Position & Actions

Chile was among the original sponsors of the 2013 UN General Assembly draft resolution on the Right to Privacy in the Digital Age. Chile's participation in the initiative demonstrates its historical support for recognizing privacy protections within the digital environment.

Chile provides a useful case study of how stronger domestic data-protection rules can be developed alongside the expansion of digital technologies.

China

1. Political & Technological Context

China is a one-party socialist state and one of the world's leading technological powers. The Chinese government places strong emphasis on national security, social stability, public order and state sovereignty.

2. History & Current Use of Surveillance

China has developed extensive digital-surveillance infrastructure, including:

- CCTV networks;
- facial recognition;
- biometric databases;
- online monitoring;
- real-name registration;
- automated analysis of digital information;
- systems for monitoring online activity.

Human Rights Watch has described China's surveillance and censorship system as one of the world's most extensive.

In 2026, China's Ministry of Public Security published a draft Cybercrime Prevention and Control Law. Among other provisions, the draft would strengthen real-name verification and allow telecommunications, internet and banking providers to monitor and report certain user activity. Human Rights Watch has raised concerns that the proposal could expand surveillance and restrict privacy and freedom of expression.

3. Human Rights Perspective

The principal international concerns include:

- the right to privacy;
- freedom of expression;
- freedom of assembly;
- political surveillance;
- surveillance of activists;
- the collection and use of biometric and personal data.

The Chinese government, however, frames many digital-security measures around national security, public order, counterterrorism, combating cybercrime and maintaining social stability.

4. International Position & Actions

China generally emphasizes cyber sovereignty, under which states retain significant authority over their own digital spaces and information environments.

This approach creates an important difference between China and states that support stronger international scrutiny of domestic digital practices. The key issue is therefore not simply whether surveillance should exist, but also how international human-rights standards should interact with state sovereignty in cyberspace.

Democratic Republic of the Congo

1. Political & Technological Context

The Democratic Republic of the Congo (DRC) is a presidential republic facing significant political instability and armed conflict, particularly in the eastern part of the country.

The country's digital-rights challenges are therefore strongly connected to national security, armed conflict and political instability rather than primarily to highly developed AI surveillance systems.

2. History & Current Use of Digital Monitoring and Restrictions

The DRC has a history of government-ordered disruptions to telecommunications and internet access during politically sensitive periods. These measures should be distinguished from surveillance itself: an internet shutdown is a restriction on access to digital communications, whereas surveillance involves monitoring or collecting information about individuals or groups

The two issues can nevertheless overlap because both affect the digital environment in which individuals communicate and exercise their rights.

For example, internet access in Goma was disrupted in January 2025 following the M23 offensive. Internet Society reports that the disruption involved both government-ordered restrictions and damage to local infrastructure caused by fighting.

3. Human Rights Perspective

Internet restrictions can affect:

- freedom of expression;
- access to information;
- freedom of peaceful assembly;
- journalism;
- communication between humanitarian organisations;
- access to essential services.

At the same time, authorities may justify restrictions during armed conflict on grounds such as national security, prevention of armed-group coordination and protection of public order.

For this topic, we should distinguish between surveillance technologies, which monitor individuals or communications, and digital restrictions, which limit access to digital services or information.

4. International Position & Actions

The DRC's approach to digital security is strongly influenced by its security situation and the conflict in eastern Congo. Its position provides an important perspective for the committee because it demonstrates that human-rights concerns surrounding digital technologies are not limited to technologically advanced surveillance systems.

The DRC also raises the question of whether developing and conflict-affected states should receive international technical assistance to develop digital-security capabilities while maintaining adequate human-rights safeguards.

France

1. Political & Technological Context

France is a democratic semi-presidential republic and a major European security and technology power. It also operates within the broader European data-protection framework.

2. History & Current Use of Surveillance

France became one of the most important recent examples of algorithmic public surveillance.

For the 2024 Paris Olympics and Paralympics, France authorized an experimental system of algorithmic video surveillance. The technology analyzed video feeds using automated systems designed to detect predefined situations that could present risks to public safety. The system was distinct from facial recognition because it was designed to detect specified events rather than identify individuals through their faces.

3. Human Rights Perspective

The major concerns include:

- privacy;
- freedom of assembly;
- discrimination;
- transparency;
- the accuracy of automated systems;
- necessity and proportionality;
- the potential normalization or expansion of algorithmic surveillance.

The French example is particularly relevant because it raises the question of whether surveillance can be considered less intrusive when a system detects behaviour or events rather than identifying specific individuals.

4. International Position & Actions

France was among the original sponsors of the 2013 UN initiative on the Right to Privacy in the Digital Age.

France therefore provides an important example of the tension between supporting international privacy principles and developing new surveillance technologies for public-security purposes.

Germany

1. Political & Technological Context

Germany is a federal parliamentary democracy with particularly strong constitutional and legal protections for privacy. Its historical experience with both Nazi and East German surveillance has strongly influenced its approach to state surveillance.

2. History & Current Use of Surveillance

Germany nevertheless maintains significant intelligence capabilities.

A particularly important current development occurred on 12 August 2026, when the German cabinet approved draft reforms that would significantly expand the powers of the Federal Intelligence Service (BND) and the Federal Office for the Protection of the Constitution (BfV). The proposals include broader access to digital communications, hacking capabilities and the use of artificial intelligence in intelligence work. The reforms are intended to address growing cyber and hybrid-security threats but still require parliamentary approval.

3. Human Rights Perspective

Germany places particularly strong emphasis on:

- privacy;
- proportionality;
- judicial and constitutional review;
- legal safeguards;
- independent oversight;
- protection against excessive state interference.

The proposed 2026 reforms therefore demonstrate the continuing tension between Germany's strong historical commitment to privacy and the government's assessment that new security threats require expanded intelligence capabilities.

4. International Position & Actions

Germany has a strong international record on digital privacy. In 2013, Germany and Brazil introduced the UN initiative on the Right to Privacy in the Digital Age, which led to General Assembly Resolution 68/167. Germany has subsequently participated in international discussions concerning privacy and digital human rights.

Germany therefore provides an important example of how a state with strong privacy protections can nevertheless reconsider the scope of surveillance powers in response to changing security threats.

India

1. Political & Technological Context

India is the world's largest democracy and one of its largest technology markets. It has invested heavily in digital public infrastructure, biometric identification and digital services.

2. History & Current Use of Surveillance

India has faced significant controversy concerning:

- Pegasus spyware;
- interception of communications;
- internet restrictions;
- biometric identification systems;
- government access to digital information.

The Pegasus controversy raised concerns about the potential targeting of journalists, activists and political figures through highly intrusive spyware. India's Supreme Court established an independent technical committee to investigate allegations concerning the use of Pegasus spyware.

At the same time, India has developed a formal data-protection framework. The Digital Personal Data Protection Act 2023 establishes rules concerning the processing of digital personal data and provides for a Data Protection Board.

3. Human Rights Perspective

The key tension is between national security and law enforcement on one hand, and privacy, freedom of expression and political participation on the other.

The Indian case also raises questions about whether strong data-protection legislation is sufficient when surveillance powers are exercised for national-security purposes.

4. International Position & Actions

India's approach to digital governance places significant emphasis on:

- national sovereignty;
- cybersecurity;
- counterterrorism;
- responsible technological development;
- the digital-development needs of developing countries.

India therefore provides an important perspective on how human-rights safeguards can be incorporated into rapidly expanding digital infrastructure while maintaining security and development objectives.

Indonesia

1. Political & Technological Context

Indonesia is a large presidential democracy undergoing rapid digitalization. It also faces security concerns involving terrorism, separatism, organized crime and political unrest.

2. History & Current Use of Digital Technologies

Indonesia has expanded regulation of digital communications and the processing of personal data. Its Personal Data Protection Law No. 27 of 2022 establishes a national framework for the protection of personal data.

Indonesia is also increasingly using digital identification and biometric technologies. These developments are particularly relevant to surveillance because systems that verify or identify individuals may require the collection and processing of sensitive personal or biometric information.

Recent regulation of children's access to social-media platforms provides another relevant example, although this should be distinguished from surveillance itself. Restrictions on access to online platforms are forms of digital regulation rather than surveillance unless they involve the monitoring or collection of information about users.

3. Human Rights Perspective

The main concerns include:

- privacy;
- protection of personal and biometric data;
- freedom of expression;
- press freedom;
- government access to online information;
- the potential for digital regulation to become overly intrusive.

Indonesia therefore demonstrates why delegates should distinguish between regulating digital platforms and monitoring individuals through digital technologies, while also considering where the two may overlap.

4. International Position & Actions

Indonesia was among the original sponsors of the 2013 UN General Assembly initiative on the Right to Privacy in the Digital Age.

Its participation demonstrates that Indonesia has previously supported the recognition of privacy protections in the digital environment. At the same time, its domestic digital-regulation framework provides delegates with an opportunity to examine how governments can address online harms and public-security concerns while maintaining privacy and freedom of expression.

Japan

1. Political & Technological Context

Japan is a technologically advanced parliamentary democracy with sophisticated telecommunications infrastructure and close security relationships with the United States and other democratic states.

2. History & Current Use of Surveillance

Japan has developed significant cybersecurity and communications-monitoring capabilities in response to concerns including cyberattacks, espionage and threats to critical infrastructure.

In 2025, Japan enacted legislation designed to strengthen its active cyber-defense capabilities, including measures concerning the monitoring and analysis of communications associated with cyber threats and cooperation with critical infrastructure operators. The Japanese government has stated that the objective is to strengthen national cybersecurity capabilities to a level comparable with other major developed countries.

At the same time, Japan maintains a strong legal framework for the protection of personal information through the Act on the Protection of Personal Information (APPI) and the Personal Information Protection Commission. The Commission continued reforms to the framework in 2026, including measures concerning information relating to physical characteristics and other personal information.

3. Human Rights Perspective

Japan therefore faces a developing tension between expanding cybersecurity capabilities and maintaining strong safeguards for personal information.

Important concerns include:

- privacy;
- protection of personal and biometric data;
- government access to communications;
- proportionality of cybersecurity measures;
- independent oversight; and
- protection of freedom of expression.

The Japanese case demonstrates that surveillance-related concerns can arise not only from traditional intelligence operations, but also from active cyber-defense and the monitoring of digital infrastructure.

4. International Position & Actions

Japan participates actively in international privacy and digital-governance cooperation. Its Personal Information Protection Commission maintains international cooperation arrangements concerning the protection and cross-border transfer of personal information.

Japan therefore provides an example of a technologically advanced state seeking to expand cybersecurity capabilities while maintaining a strong domestic framework for personal-data protection.

Nigeria

1. Political & Technological Context

Nigeria is a federal presidential republic and Africa's largest country by population. It has a rapidly developing technology sector but also faces major security challenges involving terrorism, organized crime, kidnapping and insurgency.

2. History & Current Use of Surveillance

Nigeria has expanded its cybersecurity and digital-security capabilities as part of broader efforts to combat crime and terrorism. Across Africa, governments have increasingly considered or deployed technologies including biometric databases, facial recognition, vehicle tracking and other forms of digital monitoring.

Nigeria has also developed a formal data-protection framework. The Nigeria Data Protection Act 2023 aims to regulate the processing of personal data, protect privacy and establish an independent regulatory authority.

3. Human Rights Perspective

The central concern is how surveillance and cybersecurity measures can be used while protecting:

- privacy;
- freedom of expression;
- freedom of peaceful assembly;
- journalists and civil society;
- political participation;
- personal data.

At the same time, Nigeria faces genuine security threats that create a significant governmental interest in developing surveillance and cybersecurity capabilities.

4. International Position & Actions

Nigeria's data-protection framework emphasizes both individual rights and the development of a trusted digital economy. Its position also reflects the importance of cybersecurity, counterterrorism, international cooperation and technological capacity-building.

Nigeria is therefore particularly relevant to discussions about how developing states can obtain and use advanced security technologies while developing sufficient institutional and human-rights safeguards.

Russia

1. Political & Technological Context

Russia is a highly centralized presidential system that places significant emphasis on national sovereignty, state security and control over its domestic information environment.

2. History & Current Use of Surveillance

Russia has increasingly expanded:

- online monitoring;
- state control over internet infrastructure;
- digital communications surveillance;
- restrictions on VPNs and other circumvention tools;
- blocking of foreign platforms;
- government access to digital information.

Human Rights Watch has reported that Russian authorities have expanded technological control over internet infrastructure, including systems capable of filtering and monitoring internet traffic.

These measures are generally presented by Russian authorities in terms of national security, public safety, counterterrorism and protection from foreign interference.

3. Human Rights Perspective

The main international concerns include:

- freedom of expression;
- privacy;
- political surveillance;
- freedom of association;
- censorship;
- access to information.

Russia's restrictions on online platforms and communications have intensified since the full-scale invasion of Ukraine.

It is important, however, to distinguish between surveillance, such as monitoring internet traffic, and digital restrictions, such as blocking websites or VPNs. Both can affect human rights but involve different governmental mechanisms.

4. International Position & Actions

Russia strongly promotes the concept of cyber sovereignty and emphasizes state authority over national information spaces.

An important historical point for delegates is that Russia was among the additional sponsors of the 2013 UN General Assembly resolution on the Right to Privacy in the Digital Age.

This demonstrates that Russia's international position on digital privacy has included support for the recognition of privacy as a human right, even as its domestic digital environment has subsequently become considerably more restrictive.

Saudi Arabia

1. Political & Technological Context

Saudi Arabia is an absolute monarchy undergoing rapid technological modernization through Vision 2030. Digital technologies are increasingly incorporated into public administration, security and economic development.

2. History & Current Use of Surveillance

Saudi Arabia has been linked to the use of sophisticated spyware. The Pegasus spyware case is particularly relevant because the technology can provide operators with access to communications and other sensitive information on targeted devices.

UN Special Procedures documented allegations concerning the use of Pegasus against Saudi activist Omar Abdulaziz's associate Omar Alzahrani, who had communicated with journalist Jamal Khashoggi. The allegations illustrate the potential for surveillance technology to affect individuals outside the territory of the government using it.

3. Human Rights Perspective

The major concerns involve:

- surveillance of activists and dissidents;
- journalists and human-rights defenders;
- privacy;
- freedom of expression;
- access to personal information.

The case also demonstrates the transnational nature of modern surveillance technologies: spyware can be deployed against a person located in another country, meaning that surveillance can have consequences beyond the territorial jurisdiction of the state using the technology.

4. International Position & Actions

Saudi Arabia generally emphasizes national sovereignty, counterterrorism, combating extremism, cybersecurity and state security.

For this topic, the country provides a significant case study of the challenge of regulating the international sale and transfer of highly intrusive surveillance technologies and determining what safeguards should apply when such technologies are used across borders.

Singapore

1. Political & Technological Context

Singapore is a highly developed parliamentary republic with extremely advanced digital infrastructure. Its government places strong emphasis on public order, cybersecurity, social stability and technological development.

2. History & Current Use of Surveillance

Singapore uses sophisticated digital systems in areas including:

- border control;
- identity verification;
- public administration;
- law enforcement;
- security.

Biometric technologies, including facial recognition, are increasingly relevant to Singapore's digital-security and public-service infrastructure.

Singapore has also introduced measures requiring online platforms to use technological tools to address certain forms of online criminal activity. In 2026, the government issued an implementation directive requiring Meta to introduce measures including facial recognition to address impersonation and scam-related activity on Facebook.

This demonstrates the distinction between surveillance technology and digital regulation: the underlying objective may be the regulation of harmful online activity, but the use of facial recognition introduces a separate question concerning biometric surveillance.

3. Human Rights Perspective

The government generally argues that strong digital regulation and technological measures are necessary to prevent:

- scams;
- misinformation;
- extremism;
- foreign interference;
- threats to social stability.

Human-rights concerns include privacy, freedom of expression, government access to information and the potential for digital-security measures to become overly intrusive.

4. International Position & Actions

Singapore's approach emphasizes responsible digital governance, cybersecurity, sovereignty and social stability. It has also participated in international cooperation concerning data protection and digital governance.

Singapore therefore provides an example of a state that supports substantial government regulation of the digital environment while also developing sophisticated technological systems that raise questions concerning privacy and human-rights safeguards.

South Africa

1. Political & Technological Context

South Africa is a constitutional democracy with a particularly strong constitutional framework protecting human rights and privacy.

2. History & Current Use of Surveillance

One of the most important legal cases is *AmaBhungane v Minister of Justice*, concerning South Africa's Regulation of Interception of Communications and Provision of Communication-Related Information Act (RICA).

In 2021, the Constitutional Court found that RICA lacked adequate safeguards concerning several aspects of surveillance, including notification of surveillance targets, judicial independence, the handling of surveillance information and special protections for journalists and lawyers. The Court also found that bulk communications surveillance was unlawful under the relevant legal framework.

3. Human Rights Perspective

South Africa's constitutional system provides a strong basis for emphasizing:

- privacy;
- freedom of expression;
- judicial independence;
- due process;
- protection of journalists and lawyers;
- effective remedies against unlawful surveillance.

The case is particularly useful because the Court recognized that surveillance can serve legitimate purposes such as combating serious crime and protecting national security, while still requiring safeguards against unnecessary and disproportionate interference with privacy.

4. International Position & Actions

South Africa generally emphasizes human rights, multilateralism and constitutional protections while also emphasizing sovereignty and the interests of developing countries.

Its domestic constitutional jurisprudence provides South Africa with a strong basis for discussing international safeguards, oversight and judicial protection in relation to surveillance technologies.

Türkiye

1. Political & Technological Context

Türkiye is a presidential republic whose digital-security policies are heavily influenced by terrorism, regional instability, national security and political polarization.

2. History & Current Use of Surveillance

Türkiye has extensive regulation of online platforms and digital communications. Its data-protection framework treats biometric and genetic information as special categories of personal data and establishes specific conditions for their processing.

Türkiye has also adopted measures aimed at strengthening cybersecurity and state control over digital systems. These developments have generated debate concerning the relationship between cybersecurity, government authority, privacy and freedom of expression.

It is important to distinguish these measures from surveillance itself: regulations concerning online platforms or cybersecurity are not automatically surveillance, although they may involve the collection, monitoring or processing of personal information.

3. Human Rights Perspective

The major concerns include:

- freedom of expression;
- political surveillance;
- online censorship;
- privacy;
- freedom of assembly;
- protection of personal and biometric data.

The government generally frames restrictions on digital activity in terms of national security, counterterrorism and combating disinformation.

4. International Position & Actions

Türkiye was among the additional sponsors of the 2013 UN General Assembly resolution on the Right to Privacy in the Digital Age.

This provides an important example of the distinction between international commitments and domestic policy: a state may recognize privacy as an important human right internationally while also maintaining extensive domestic security and digital-regulation powers.

United Kingdom

1. Political & Technological Context

The United Kingdom is a constitutional monarchy and parliamentary democracy with highly developed intelligence and law-enforcement capabilities. It is a member of the Five Eyes intelligence alliance and operates agencies such as GCHQ.

2. History & Current Use of Surveillance

The Investigatory Powers Act 2016 provides a legal framework for the interception of communications, retention and acquisition of communications data, equipment interference and other investigatory powers. The Act also establishes safeguards and oversight mechanisms, including judicial approval for certain warrants and independent oversight.

The UK is also expanding its use of live facial recognition. Government guidance confirms its use by Immigration Enforcement, while the government has proposed a new legal framework for law-enforcement use of facial recognition and other biometric technologies.

In 2026, the UK government stated that new legislation would establish clearer rules and independent oversight for law-enforcement use of biometrics and facial recognition.

3. Human Rights Perspective

The UK's central position is that surveillance can be legitimate when it is necessary and proportionate for purposes such as national security and the prevention of serious crime.

The major human-rights concerns include:

- privacy;
- freedom of expression;
- journalism;
- freedom of assembly;
- algorithmic bias;
- transparency;
- the impact of surveillance on encrypted communications.

4. International Position & Actions

The UK generally supports international human-rights institutions while maintaining a strong emphasis on national security.

It therefore provides an important case study of how a democratic state can maintain extensive surveillance capabilities while attempting to establish legal safeguards, judicial authorization and independent oversight.

United States

1. Political & Technological Context

The United States is a federal presidential republic and one of the world's leading technological and intelligence powers. It is home to many of the world's largest technology companies and has extensive domestic and international intelligence capabilities.

2. History & Current Use of Surveillance

A central issue has been Section 702 of the Foreign Intelligence Surveillance Act (FISA). Section 702 authorizes targeted collection of foreign-intelligence information from non-US persons reasonably believed to be located outside the United States. Communications involving US persons can nevertheless be incidentally acquired.

The program has generated significant debate concerning privacy, oversight and the circumstances under which information involving US persons can subsequently be accessed.

The future of Section 702 has also become a significant political issue. Its authorization expired in June 2026 following disagreement over whether and how the program should be renewed.

3. Human Rights Perspective

The US government emphasizes the importance of surveillance for:

- national security;
- counterterrorism;
- foreign intelligence;
- cybersecurity;
- preventing threats from foreign actors.

Critics have raised concerns concerning:

- privacy;
- journalists and lawyers;
- political activists;
- incidental collection of communications;
- the adequacy of oversight mechanisms.

The United States also has a complicated relationship with private surveillance technology, having taken action against certain spyware companies while maintaining sophisticated surveillance capabilities within government agencies.

4. International Position & Actions

The Snowden revelations of 2013 exposed extensive NSA surveillance programs and contributed significantly to the international debate concerning digital privacy.

The United States therefore provides an important case study of the tension between national-security intelligence capabilities and international expectations concerning privacy and human rights. It also raises the question of how surveillance practices should be regulated when communications and data cross national borders.

7. QUESTIONS TO CONSIDER FOR POSITION PAPERS

1. What is your country's current position on the development and use of digital surveillance technologies?
2. What surveillance technologies are currently used or regulated in your country, and what are their main purposes?
3. What national laws, policies, or institutions regulate surveillance and protect individuals' rights in your country?
4. What human-rights concerns or controversies has your country faced regarding digital surveillance?
5. How does your country balance national security and public safety with the rights to privacy, freedom of expression, and peaceful assembly?
6. What safeguards should governments have in place to ensure that surveillance is necessary, proportionate, transparent, and subject to effective oversight?
7. What responsibilities should private technology companies have in the development, sale, and use of surveillance technologies and the handling of personal data?
8. What international standards or forms of cooperation concerning digital surveillance would your country support, and what role should the United Nations play?
9. How should the international community address surveillance technologies that can be used across national borders, such as spyware and other forms of targeted surveillance?
10. What practical solutions would your country be willing to support, and what compromises could it make with states that have different approaches to surveillance, human rights, and digital sovereignty?

8. USEFUL ARTICLES AND LINKS

We gathered some useful sources for research. Please note that those are not the only sources you can use.

Department of Home Affairs — Electronic Surveillance Industry Obligations

‘Surveillance without a need for a warrant’: WA Police AI facial recognition trial slammed by lawyers, academics | [news.com.au](https://www.news.com.au) — Australia’s leading news site for latest headlines

The Australian — Privacy Commissioner and Smart Glasses

UN Digital Library — The Right to Privacy in the Digital Age

United Nations Brazil — Brazil and Germany Bring Digital Privacy Proposal to the UN

Data Privacy Brasil — Digital Defense Initiative

Future of Privacy Forum — Chile's New Data Protection Law

RV Soluciones Legales — Facial Recognition and Video Surveillance in Chile

<https://digitallibrary.un.org/record/761158/?v=pdf>

Human Rights Watch — China 2026

<https://www.hrw.org/news/2026/03/17/china-cybercrime-bill-entrenches-censorship-surveillance>

<https://cipesa.org/2017/03/the-evolution-of-internet-shutdowns-in-dr-congo/>

Human Rights Watch — Democratic Republic of the Congo 2026

<https://www.cnil.fr/fr/cameras-augmentees-espaces-publics>

Human Rights Watch — France: Reject Surveillance in Olympic Games Law

Le Monde — Algorithmic Video Surveillance During the Olympics

<https://digitallibrary.un.org/record/761158/?v=pdf>

<https://www.auswaertiges-amt.de/en/newsroom/news/131101-brasilien-vn-258082>

UN Digital Library — 2013 Privacy Resolution

<https://www.reuters.com/world/german-cabinet-approves-plan-grant-more-powers-spy-services-2026-08-12/>

German Federal Constitutional Court — BND Surveillance Ruling

Supreme Court Observer — Pegasus Spyware Probe

Amnesty International — Pegasus Targeting of Indian Journalists

Human Rights Watch — India and Spyware/Privacy

<https://digitallibrary.un.org/record/761158/?v=pdf>

Human Rights Watch — Indonesia 2026

Human Rights Watch — Nigeria 2026

The Guardian — AI-Led Mass Surveillance in Africa

Human Rights Watch — Russia 2026

<https://digitallibrary.un.org/record/761158/?v=pdf>

Amnesty International — The Pegasus Project

Human Rights Watch — Saudi Arabia 2026

Human Rights Watch — Singapore 2026

<https://www.mddi.gov.sg/newsroom/mddi-minlaw-joint-statement-on-print-correction-notices-under-pofma/>

[Constitutional Court of South Africa — AmaBhungane Judgment](#)

[Human Rights Watch — South Africa 2026](#)

[Financial Times — Türkiye's New Cybersecurity Law](#)

[Human Rights Watch — Türkiye 2026](#)

<https://digitallibrary.un.org/record/761158/?v=pdf>

[Human Rights Watch — United Kingdom 2026](#)

[Reuters — UK and Apple Encryption Dispute](#)

[Reuters — FISA Section 702 in 2026](#)

[UN Digital Library — Right to Privacy in the Digital Age](#)

[UN Digital Library — The Right to Privacy in the Digital Age \(2013\)](#)

<https://digitallibrary.un.org/record/761158/?v=pdf>

[UN Digital Library — Human Rights Council Resolution 54/21: Right to Privacy in the Digital Age](#)

[OHCHR — The Right to Privacy in the Digital Age](#)

[OHCHR — Surveillance Industry and Freedom of Expression](#)

[UNESCO — Recommendation on the Ethics of Artificial Intelligence](#)

[Council of Europe — Human Rights and Artificial Intelligence Handbook](#)

[Council of Europe — Artificial Intelligence and Human Rights](#)